

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

Record class: clerk's merits-calendar notice for the actual Ellison appeal.

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. SYN-CA4-26-CV-4104 · Calendar notice

Oral-Argument Calendar Notice

Issued May 20, 2026.

The appeal is calendared for oral argument on June 10, 2026, at 9:30 a.m. in the Court's Richmond session. The assigned panel consists of Composite Jurist Alder, presiding, Composite Jurist Reed, and Composite Jurist March. These fictional composite profiles identify the training bench and do not represent real judges.

Appellant Officer Nolan Rusk and appellee Mara Ellison shall each receive twenty minutes. Rusk may reserve up to five minutes for rebuttal by notifying the courtroom deputy before the session. Counsel should be present at least thirty minutes before the calendar begins and should bring a paper copy of the briefs and joint appendix for personal use.

The appeal presents a threshold jurisdictional boundary and a separable qualified-immunity issue. Counsel should be prepared to identify which portion of Rusk's media argument challenges evidentiary sufficiency and which legal question accepts the district court's assumed facts. Questions may address *Johnson v. Jones*, *Barricks v. Wright*, force proportionality under *Graham* and *Armstrong*, and the effect of intervening *Zorn v. Linton* on the specificity analysis.

Session and submission instructions

Any demonstrative must reproduce or accurately summarize material already in the certified record. No reconstruction, interpolated frame, or enhanced image may suggest that the cameras captured unseen hand movement during 19:53:08–19:53:22. Counsel intending to request native-media playback must coordinate format and timing with the Clerk at least five business days before the session and identify the exact authenticated segment.

Argument should distinguish three propositions: what the district record conclusively shows, what Judge Mercer assumed solely for the legal ruling, and what remains for a factfinder. The panel's questions about either witness's account do not signal a factual finding. Counsel should also explain whether *Zorn*, decided after the incident, is used only as intervening methodology and why it can or cannot be distinguished from the electrical-force context.

The Clerk will announce the case in ordinary calendar order. Electronic devices must comply with courtroom directions. A request for remote appearance, additional time, or calendar change must be made promptly by motion and must state opposing counsel's position.

This notice changes no briefing deadline and expresses no view on jurisdiction or disposition. Electronic notice issued to all registered counsel on May 20, 2026.